

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

SENATE BILL NO. 2006
(Appropriations Committee)

AN ACT to provide an appropriation for defraying the expenses of the North Dakota aeronautics commission; to provide an exemption; and to provide a statement of legislative intent.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. APPROPRIATION. The funds provided in this section, or so much of the funds as may be necessary, are appropriated out of any moneys in the general fund in the state treasury, not otherwise appropriated, and from other funds derived from special funds and federal funds, to the North Dakota aeronautics commission for the purpose of defraying the expenses of the North Dakota aeronautics commission, for the biennium beginning July 1, 2025, and ending June 30, 2027, as follows:

	<u>Base Level</u>	<u>Adjustments or Enhancements</u>	<u>Appropriation</u>
Salaries and wages	\$1,789,878	\$132,794	\$1,922,672
New and vacant FTE pool	0	20,495	20,495
Operating expenses	3,285,000	(119)	3,284,881
Grants	<u>27,100,000</u>	<u>93,775,000</u>	<u>120,875,000</u>
Total all funds	\$32,174,878	\$93,928,170	\$126,103,048
Less other funds	<u>31,699,878</u>	<u>93,928,170</u>	<u>125,628,048</u>
Total general fund	\$475,000	\$0	\$475,000
Full-time equivalent positions	7.00	0.00	7.00

SECTION 2. ONE-TIME FUNDING - EFFECT ON BASE BUDGET - REPORT TO SEVENTIETH LEGISLATIVE ASSEMBLY. The following amounts reflect the one-time funding items included in the appropriation in section 1 of this Act which are not included in the entity's base budget for the 2027-29 biennium and which the entity shall report to the appropriations committees of the seventieth legislative assembly regarding the use of this funding:

<u>One-Time Funding Description</u>	<u>Other Funds</u>
Generational airport projects	<u>\$90,000,000</u>
Total	\$90,000,000

SECTION 3. NEW AND VACANT FTE POOL - LIMITATION - TRANSFER REQUEST. The North Dakota aeronautics commission may not spend funds appropriated in the new and vacant FTE pool line item in section 1 of this Act, but may request the office of management and budget to transfer funds from the new and vacant FTE pool line item to the salaries and wages line item in accordance with the guidelines and reporting provisions included in House Bill No. 1015, as approved by the sixty-ninth legislative assembly.

SECTION 4. OTHER FUNDS - AIRPORT INFRASTRUCTURE FUND - AIRPORT GRANTS - EXEMPTION. The other funds appropriation in section 1 of this Act includes \$20,000,000 from the airport infrastructure fund for the aeronautics commission to provide grants to airports during the biennium beginning July 1, 2025, and ending June 30, 2027. Section 54-44.1-11 does not apply to this funding, and any funds not spent by June 30, 2027, must be continued into the biennium beginning July 1, 2027, and ending June 30, 2029, and may be expended only for providing grants to airports.

SECTION 5. OTHER FUNDS - STRATEGIC INVESTMENT AND IMPROVEMENTS FUND - GENERATIONAL AIRPORT PROJECTS - EXEMPTION - LEGISLATIVE INTENT.

1. The other funds appropriation in section 1 of this Act includes \$90,000,000 from the strategic investment and improvements fund for generational airport projects during the biennium beginning July 1, 2025, and ending June 30, 2027.
2. Section 54-44.1-11 does not apply to the funding identified in this section and appropriated in section 1 of this Act, and any funds not spent by June 30, 2027, must be continued into the biennium beginning July 1, 2027, and ending June 30, 2029, and may be expended only for generational airport projects.
3. It is the intent of the sixty-ninth legislative assembly that state funds not be used to replace any federal grant funds applied for but not received for a generational airport project. It is further the intent of the sixty-ninth legislative assembly that, of the funding identified in this section, \$45,000,000 is for the Fargo commercial terminal expansion project, \$20,000,000 is for the Grand Forks primary runway reconstruction project, and \$25,000,000 is for the Dickinson terminal construction project.

SECTION 6. DICKINSON AIRPORT PROJECT DEBT REPAYMENTS. During the 2025-27 biennium, the city of Dickinson shall use funding allocated to it from the hub city debt relief funding pool under section 57-51-15 for debt repayments related to debt incurred for a project at the Dickinson airport.

SECTION 7. EXEMPTION - INTERNATIONAL PEACE GARDEN AIRPORT REHABILITATION PROJECT. The sum of \$3,750,000 appropriated from federal funds and special funds for the International Peace Garden airport pavement rehabilitation project in section 1 of chapter 6 of the 2023 Session Laws is not subject to the provisions of section 54-44.1-11 and any unexpended funds from these appropriations are available and may be expended during the biennium beginning July 1, 2025, and ending June 30, 2027.

President of the Senate

Speaker of the House

Secretary of the Senate

Chief Clerk of the House

This certifies that the within bill originated in the Senate of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as Senate Bill No. 2006.

Senate Vote: Yeas 46 Nays 0 Absent 1

House Vote: Yeas 82 Nays 8 Absent 4

Secretary of the Senate

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State